

STATE OF NEW YORK

8350--A

2025-2026 Regular Sessions

IN ASSEMBLY

May 13, 2025

Introduced by M. of A. BUTTENSCHON, COLTON, GRIFFIN, STECK, STIRPE, LUNSFORD, CONRAD, BURDICK, PHEFFER AMATO, SAYEGH, WOERNER, FALL, SHIMSKY, CLARK, KASSAY, HEVESI, JACOBSON, SANTABARBARA, P. CARROLL, KAY, EACHUS, McDONALD -- read once and referred to the Committee on Governmental Employees -- reported and referred to the Committee on Ways and Means -- recommitted to the Committee on Governmental Employees in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the retirement and social security law, in relation to authorizing members or officers of the state police who were previously firefighters to count such firefighter service towards such member's or officer's retirement plan

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The subdivision heading of subdivision c of section 381-b
2 of the retirement and social security law, as amended by chapter 581 of
3 the laws of 2001, is amended and a new paragraph 3 is added to read as
4 follows:

5 Credit for previous [~~police~~] service.

6 (3) Career firefighter service. In computing the years of total cred-
7 itable service in such division each member who was previously a fire-
8 fighter of any county, city, town, village or fire district and a member
9 of the New York state and local police and fire retirement system shall
10 receive full credit and be given full allowance for service previously
11 rendered as a firefighter.

12 § 2. This act shall take effect immediately.

FISCAL NOTE.--Pursuant to Legislative Law, Section 50:

This bill would expand the definition of creditable service in section 381-b of the Retirement and Social Security Law to include firefighter

EXPLANATION--Matter in italics (underscoring) is new; matter in brackets [~~-~~] is old law to be omitted.

LBD10354-03-6

service credit. Currently, a New York State Trooper does not receive service credit for time worked as a firefighter.

There will be an immediate past service cost of \$2.32 million borne by the State of New York as a one-time payment. This cost assumes that payment will be made on March 1, 2027.

This bill will marginally increase the State of New York's annual contributions beginning FYE 2027.

These estimated costs are based on 9 affected members employed by the State of New York, with annual salary of approximately \$1.60 million as of March 31, 2025.

Summary of relevant resources:

Membership data as of March 31, 2025 was used to measure the impact of the bill, the same data used in the Actuarial Valuations dated April 1, 2025. Distributions and other statistics can be found in the 2025 Report of the Actuary and the 2025 Annual Comprehensive Financial Report. The actuarial assumptions and methods used are described in the 2025 Annual Report to the Comptroller on Actuarial Assumptions, and the Codes, Rules and Regulations of the State of New York: Audit and Control. The fair value of assets and GASB disclosures can be found in the 2025 Financial Statements and Supplementary Information.

Assumptions, demographics, and other considerations may have been modified to better reflect specific provisions of any proposed benefit change(s).

This fiscal note does not constitute a legal opinion on the viability of the bill, nor is it intended to serve as a substitute for the professional judgment of an attorney.

This estimate, dated January 15, 2026, and intended for use only during the 2026 Legislative Session, is Fiscal Note Number 2026-2. As Chief Actuary of the New York State and Local Retirement System (NYSLRS), I, Aaron Schottin Young, hereby certify that this analysis complies with applicable Actuarial Standards of Practice as well as the Code of Professional Conduct and Qualification Standards for Actuaries Issuing Statements of Actuarial Opinion of the American Academy of Actuaries, of which I am a member. I am a member of NYSLRS but do not believe it impairs my objectivity.